

MEMORANDUM

TO: SCBA Civil Bench-Bar Committee
FROM: John A. Kelly
DATE: February 23, 2026
RE: 57-County Comparative Analysis of California Civil Local Rules

I. EXECUTIVE SUMMARY

This memorandum presents the findings of a comparative analysis of all 57 non-Sonoma California counties' civil local rules, identifying approximately 78 distinct procedural practices across ten categories. The analysis provides a comprehensive picture of how California's trial courts manage their civil dockets—what practices are widespread, what is innovative, and where Sonoma County's existing rules fit within the statewide landscape.

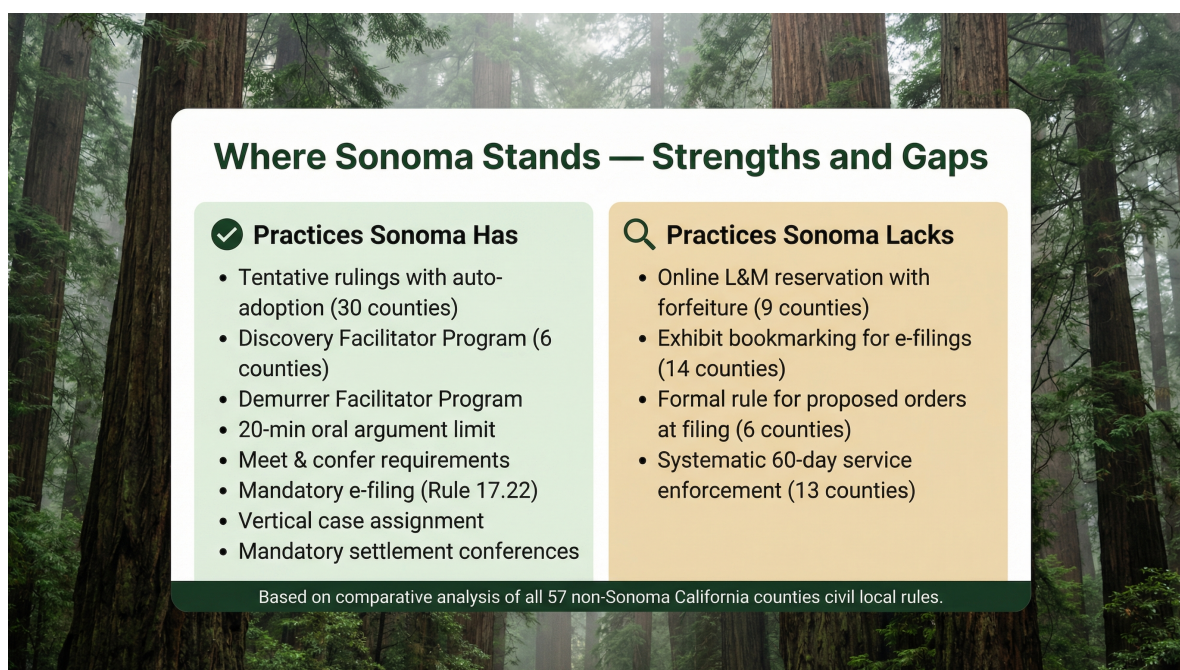


Figure 1: Where Sonoma Stands — Strengths and Gaps

KEY FINDINGS

Vertical case assignment (all-purpose assignment) is nearly universal, with 52 of 57 counties reflecting strong statewide consensus on judicial ownership models. Automatic case management conference setting at filing is standard practice in 55 of 57 counties. Mandatory electronic filing is the statewide norm, with 30 counties requiring it, including nearly all high-volume courts. Tentative ruling systems with automatic adoption are used in 30 counties, and Sonoma is among them. Online law and motion reservation systems with forfeiture rules, used in 9 counties, are strongly

associated with calendar control and reduced unused hearing slots. Exhibit bookmarking requirements, used in 14 counties, materially reduce judicial processing time for filed documents. CRC Rule 3.1345(b)(2) expressly authorizes courts to allow concise discovery dispute outlines in place of full separate statements, an option San Diego has used effectively.

SONOMA COUNTY'S CURRENT POSITION

Sonoma already utilizes several practices that place it among peer courts:

- A tentative ruling system with auto-adoption for case management conferences (Rule 4.2(B), with explicit auto-adoption language) and tentative rulings posted by 2:00 p.m. the day before law and motion hearings (Rule 5.5(A)). In practice, if no party requests argument by 4:00 p.m., the tentative becomes the order of the court for law and motion as well, though the auto-adoption language in Rule 5.5 is less explicit than in Rule 4.2(B).
- A Discovery Facilitator Program (Rule 4.14) used in only 6 counties statewide.
- A Demurrer Facilitator Program (Rule 4.17), an additional facilitative mechanism.
- A 20-minute oral argument time limit for law and motion (Rule 5.5(B)).
- Meet and confer requirements in person or by telephone at least 5 days before hearing (Rule 5.4).
- Mandatory e-filing for represented parties in civil cases (Local Rule 17.22, effective January 1, 2023).
- Mandatory settlement conferences (Rule 4.6).
- Vertical case assignment (one judge for all purposes) (Rule 4.2).

Areas where Sonoma's rules differ from emerging statewide trends include: the absence of an online law and motion reservation and forfeiture system; no formal exhibit bookmarking requirement for routine civil filings (CRC Rule 2.256(b)(3) requires text-searchable PDFs but does not address exhibit bookmarking); the existing clerk practice of requiring proposed orders with motions lacks express local rule authority; and there is no systematic enforcement of the existing statewide 60-day service rule (CRC Rule 3.110) through automatic issuance of orders to show cause.

II. LAW AND MOTION SCHEDULING PRACTICES ACROSS CALIFORNIA

I. ONLINE LAW AND MOTION RESERVATION SYSTEMS WITH FORFEITURE RULES

Under this practice, parties must reserve a hearing date online before filing a motion. If the motion is not filed within a specified period (typically three to five court days), the reservation is automatically forfeited. Nine counties use this approach: Alameda (Rule 3.30(b)), Fresno (2.2.1), Kern (3.3.1), Orange (314A), Riverside (3310), Santa Clara (8(A)(2)), Placer (20.2(A)), Ventura (3.21), and Contra Costa (3.41). Seven explicitly include forfeiture mechanisms. These systems eliminate unused hearing slots, provide real-time calendar capacity management, and reduce speculative over-noticing. CRC Rule 3.20 does not address this topic; it is a calendar management tool rather than a rule relating to the substance of motions, discovery, or the form and format of papers.

Sonoma does not currently have such a system.



Figure 2: Law & Motion Scheduling — Statewide Practices

2. TENTATIVE RULING AUTO-ADOPTION LANGUAGE

Among the 30 counties with tentative ruling systems, the clarity and formality of auto-adoption language varies. Some courts use explicit language providing that the tentative “becomes the order of the court” if no party contests it; others achieve the same result through less visible procedural mechanisms.

Sonoma’s Rule 4.2(B) uses explicit auto-adoption language for case management conferences: “the tentative ruling will become the ruling of the Court at the conference unless any party desiring to be heard so advises the judicial assistant.” For law and motion, Rule 5.5 achieves the same result through the language “where appearance has been required or invited by the court, then oral argument may be presented,” but the auto-adoption mechanism is less visible to practitioners. Counties with explicit auto-adoption language report reductions in oral argument volume of 50 to 80 percent. CRC Rule 3.1308 authorizes tentative ruling systems.

3. MANDATORY INFORMAL DISCOVERY CONFERENCES

Under this practice, no discovery motion may be filed until an informal discovery conference with the court has been attempted. Six counties use this approach: Fresno (Rule 2.1.17), Ventura (8.10), San Mateo (3.700), Nevada (4.05.3), Placer (20.2), and Tuolumne (2.04.1).

Sonoma’s Discovery Facilitator Program (Rule 4.14) uses a panel attorney to mediate between the parties, and Rule 5.4 requires in-person or telephonic meet and confer. Neither constitutes a conference with the assigned judge or a designated judicial officer. The informal discovery conference model used in other counties operates as a calendaring prerequisite rather than a discovery rule

per se, and counties operating IDC programs have adopted them under the Delay Reduction Act framework (Government Code sections 68603 et seq.) within the CRC Rule 3.20(b)(4) exception.

4. CENTRALIZED LAW AND MOTION DEPARTMENTS

A dedicated department handles all civil law and motion matters, freeing trial judges from law and motion calendars. Twelve counties use this model, including Alameda, Contra Costa, Los Angeles, Sacramento, San Francisco, and Santa Clara. The expected effects are calendar uniformity, predictable scheduling, and concentrated expertise, though implementation requires judicial resource reallocation.

Sonoma uses the one-judge-for-all-purposes model (Rule 4.2), where each assigned judge hears their own motions.

5. ORAL ARGUMENT TIME LIMITS

Sonoma imposes a 20-minute oral argument limit for law and motion (Rule 5.5(B)). Several smaller counties use 10 to 15 minutes total. Shorter limits modestly increase daily motion capacity and reduce the likelihood of calendar overruns.

III. FILING PROCESSING PRACTICES ACROSS CALIFORNIA

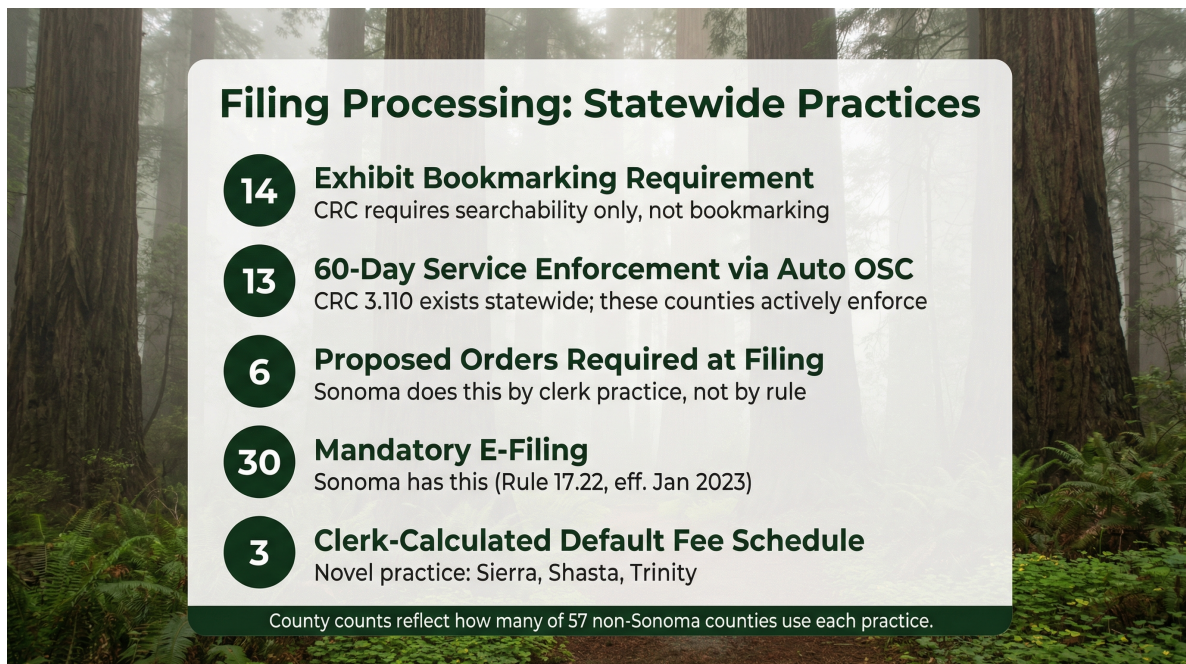


Figure 3: Filing Processing — Statewide Practices

1. EXHIBIT BOOKMARKING REQUIREMENTS

CRC Rule 2.256(b)(3) requires that electronically filed documents “be text searchable when technologically feasible without impairment of the document’s image.” That is a text-searchability re-

quirement only; the Advisory Committee Comment confirms that “technologically feasible” refers to standard OCR software. The CRC does not address bookmarking, exhibit indexing, or exhibit-level navigation within a filed document.

Fourteen counties require exhibit bookmarking in e-filed documents, including Alameda (Rule 3.27), Santa Clara (6(A)), and Orange (314A). Bookmarked PDFs allow a reader to click directly to a specific exhibit tab, as opposed to merely searching the text. Courts using this practice report substantial judicial efficiency gains and reduced staff time navigating exhibits.

Sonoma Rule 4.19 requires hyperlinks and electronic indexing for CEQA matters, but this does not extend to routine civil filings. CRC 2.256(b) establishes only a text-searchability standard and does not address exhibit bookmarking, meaning that local bookmarking rules operate in a space the CRC has not occupied.

2. PROPOSED ORDERS AT TIME OF FILING

Some courts require a proposed order to be submitted with the motion at the time of filing, eliminating post-hearing drafting delays. Six counties have adopted this requirement: Plumas, Shasta, Trinity, Modoc, Madera, and Ventura.

Under the CRC framework, Rule 3.1312 requires the prevailing party to submit a proposed order within five days of ruling. Rule 3.1113(m) uses permissive language regarding proposed orders submitted with motions. CRC Rule 3.1201(5) requires a proposed order for ex parte applications. For regular contested motions, the CRC does not mandate a proposed order at the time of filing but does not prohibit it either, leaving space for local rules.

Sonoma’s practice is that the clerk will not accept a motion for filing without an accompanying proposed order, but this currently lacks express local rule authority—no general order establishing the requirement was identified, and it appears to be an established clerk’s office practice.

3. 60-DAY SERVICE RULE ENFORCEMENT

CRC Rule 3.110 requires statewide that a complaint be served and proof of service filed within 60 days of filing. Thirteen counties (including Colusa, Lake, Mendocino, and Tulare) have local rules restating or reinforcing this existing statewide requirement, often with automatic issuance of orders to show cause upon non-compliance. Systematic monitoring and enforcement of this rule reduces dormant case inventory and keeps the case pipeline active.

4. E-FILING CROSS-REFERENCES IN CIVIL RULES

Sonoma has mandatory e-filing for represented parties in civil cases under Local Rule 17.22, effective January 1, 2023. Self-represented parties are exempt. Documents may be submitted until 11:59 p.m. on the due date and are deemed timely. This requirement is located in the court technology section of the local rules (Rule 17) rather than in the civil rules section (Rules 4 and 5).

5. CLERK-CALCULATED DEFAULT ATTORNEY FEE SCHEDULES

Under Code of Civil Procedure section 585(a), the clerk may enter a default judgment in contract or money damage actions and include attorney fees if the court has adopted a local schedule of attorney fees for defaults. Without such a schedule, every default judgment that includes a claim for attorney fees requires either a court hearing or a noticed motion on fee reasonableness. A preset schedule allows the clerk to apply the schedule and enter fees without a hearing. Civil Code section 1717.5(b) provides that fees exceeding any court-adopted schedule must be proven as reasonable. Sierra County (Rule 2.8), Shasta, and Trinity have such schedules. This is a novel practice used in a handful of counties; the practical impact is modest because defaults are not the primary driver of law and motion volume, but it eliminates an unnecessary category of motion hearings.

IV. ADDITIONAL PRACTICES OBSERVED STATEWIDE



Figure 4: Additional Practices Observed Across California

Case Management. CRC Rule 3.714(b) establishes statewide disposition goals (75% within 12 months, 85% within 18 months, 100% within 24 months). Twenty-two counties have formalized local disposition tracks within this framework. Five counties (including Fresno and Ventura) enforce a “no case off calendar without future event” rule, which prevents any case from going dormant by requiring a future court event at all times.

Discovery. San Diego (Rule 2.1.21) allows a concise discovery dispute outline instead of a full separate statement, reducing filing volume and judicial review time. CRC Rule 3.1345(b)(2) expressly authorizes this practice: a separate statement is not required “when a court has allowed the moving party to submit—in place of a separate statement—a concise outline of the discovery request and each response in dispute.”

ADR. Mandatory mediation before trial is used in 18 counties. Court-funded early settlement sessions, as offered in Santa Clara, Santa Barbara, and Amador, represent another model. Sonoma already has mandatory settlement conferences (Rule 4.6).

Trial Management. Setting a trial date at the first CMC is used in 8 counties. The practice of deeming the trial management conference as the commencement of trial, which ties discovery and motion cutoffs to the TMC rather than the trial date, is used in Napa, Orange, and Ventura. This approach directly prevents last-minute filings and discovery disputes but reduces flexibility for counsel.

Ex Parte. Sonoma Rule 5.6 designates ex parte times and locations on the court's website, functioning similarly to the fixed daily ex parte times used in 15 counties. Sonoma's court also decides certain ex parte applications on papers without requiring an appearance. CRC Rule 3.1207 requires the applicant to "appear, either in person or remotely," with four enumerated exceptions. The legal basis for ruling on papers beyond those exceptions rests on the court's inherent authority to manage its proceedings under Code of Civil Procedure section 128(a)(3) ("the power to provide for the orderly conduct of proceedings") and section 128(a)(5) ("the power to control in furtherance of justice the conduct of its ministerial officers").

Technology. Default remote appearances for non-evidentiary hearings are used in 8 counties. Sonoma Rule 5.5(D) permits remote appearances under CRC Rule 3.670 but does not make remote the default. In practice, Sonoma judges give priority to attorneys who appear in person. Sonoma already recognizes up-to-midnight filing through its e-filing system.

V. PRACTICES SONOMA ALREADY DOES WELL

Sonoma's Discovery Facilitator Program (Rule 4.14) is used in only 6 counties statewide. The Demurrer Facilitator Program (Rule 4.17) provides additional facilitative capacity. Sonoma's tentative ruling system (Rule 5.5) places it among the 30 counties with this practice, and the system operates as auto-adoption in practice. The 20-minute oral argument limit (Rule 5.5(B)) provides calendar control. Meet and confer requirements by telephone or in person (Rule 5.4) are well-defined. Mandatory e-filing (Rule 17.22, effective January 1, 2023) is in place. ADR integration through mandatory settlement conferences (Rule 4.6) and the vertical case handling model (Rule 4.2) are consistent with the majority of courts. CEQA electronic record and hyperlink rules (Rule 4.19) are more technologically prescriptive than most counties.

VI. PRACTICES TO AVOID

Overly rigid single weekly law and motion days can cap capacity and create scheduling bottlenecks. Excessive local formatting requirements beyond CRC standards lead to frequent rejections and attorney frustration. Discovery processes that add procedural layers without reducing motions risk increasing delay. Fragmented geographic filing divisions, which Sonoma does not use, introduce administrative complexity without proportional benefit for a court of this size.

VII. STATEWIDE ADOPTION LANDSCAPE

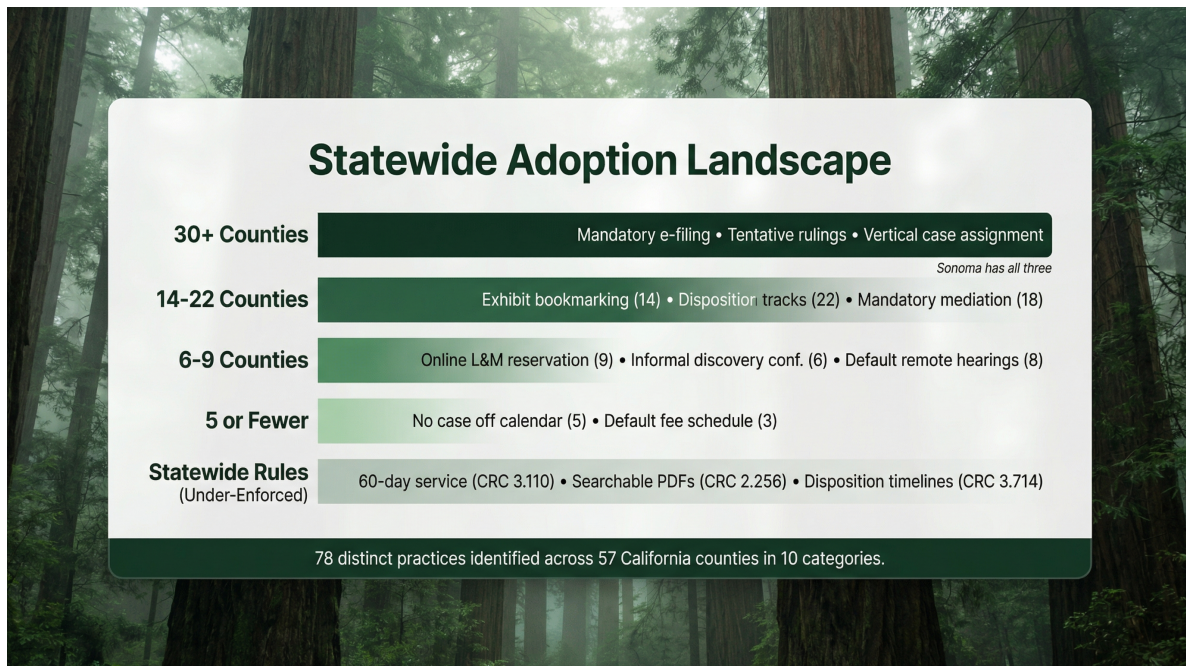


Figure 5: Statewide Adoption Landscape

The following categories illustrate the prevalence of various practices across California:

Already required by statewide rule but potentially under-enforced in some courts: 60-day service (CRC Rule 3.110), searchable PDFs for e-filed documents (CRC Rule 2.256(b)(3)), case disposition timelines (CRC Rule 3.714(b)), and proposed orders within 5 days of ruling (CRC Rule 3.1312).

Widespread practices (30+ counties): Mandatory e-filing, tentative ruling systems, vertical case assignment. Sonoma has all three.

Moderately adopted practices (14-22 counties): Exhibit bookmarking for e-filed documents (14 counties), formal disposition tracks (22 counties), mandatory mediation before trial (18 counties).

Practices used in 6-9 counties: Online law and motion reservation with forfeiture (9 counties), mandatory informal discovery conferences before filing discovery motions (6 counties), default remote appearances for non-evidentiary hearings (8 counties).

Practices used in 5 or fewer counties: No case off calendar without future event (5 counties), clerk-calculated default fee schedule (3 counties).

VIII. NOTABLE COUNTY-SPECIFIC PRACTICES

Fresno and Ventura enforce a “no case off calendar without future event” rule. Santa Clara uses an online reservation system with automatic forfeiture. San Diego allows a discovery dispute outline instead of a separate statement, expressly authorized by CRC Rule 3.1345(b)(2). Napa, Orange, and Ventura deem the trial management conference as the commencement of trial. Sierra and Trinity use a clerk-calculated default attorney fee schedule. Ventura imposes strict continuance limits.

IX. CRC RULE 3.20 PREEMPTION CONSIDERATIONS

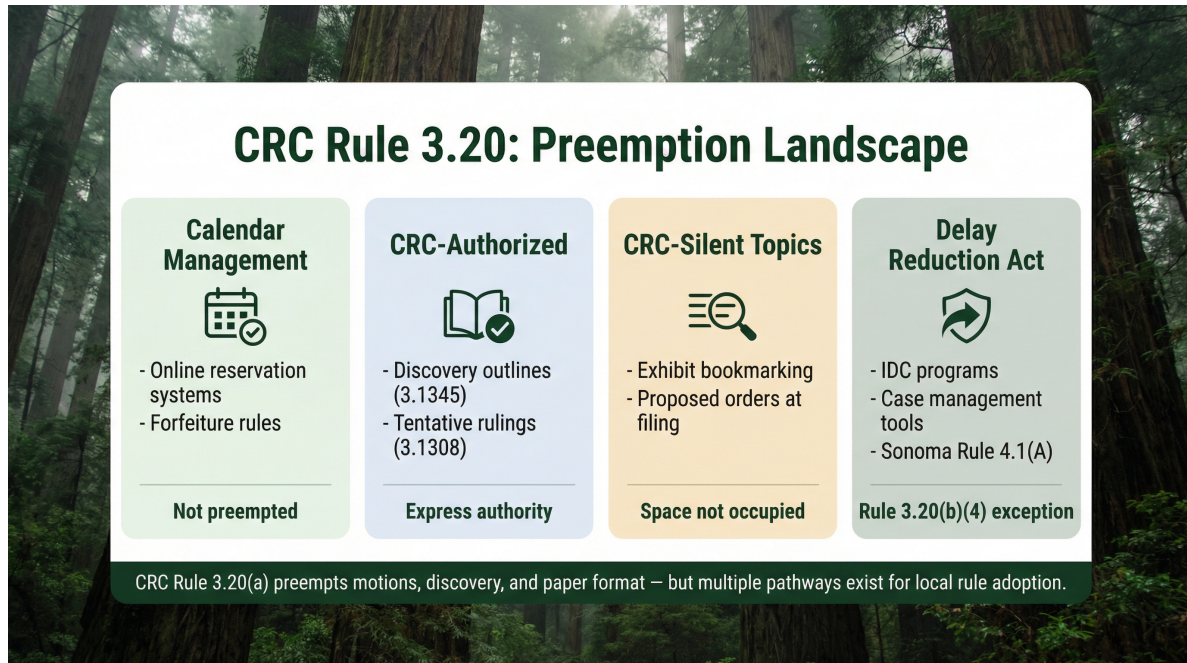


Figure 6: CRC Rule 3.20 Preemption Landscape

CRC Rule 3.20(a) preempts local rules in several fields, including motions, discovery, and the form and format of papers. However, several categories of practice fall outside or alongside the preempted fields:

- Calendar management tools (such as online reservation systems) do not relate to the substance of motions, discovery, or paper format.
- CRC-authorized practices (such as concise discovery outlines under CRC Rule 3.1345(b)(2)) operate directly under express statewide authorization.
- Topics not addressed by the CRC (such as exhibit bookmarking) operate in spaces the CRC has not occupied.
- Delay Reduction Act authority (Government Code sections 68603 et seq.) provides an exception under Rule 3.20(b)(4) for local rules adopted within that framework. Sonoma’s civil rules are adopted under this framework (Rule 4.1(A)).

Courts adopting practices in preempted fields have generally framed them under the Delay Reduc-

tion Act or as calendar management tools rather than as modifications to statewide procedural rules.

X. METHODOLOGY NOTE

This report is based on a structured review of 57 county comparison reports analyzing civil local rules across California. A CRC Rule 3.20 preemption analysis has been performed for each practice that touches a preempted field.

Rule adoption does not guarantee effective implementation. No empirical time-to-hearing data was available for this analysis. County volume and staffing differences affect the scalability of any given practice.

Supporting materials available include:

- Appendix A: Practice Inventory (78 practices catalogued from 57 counties)
- Appendix B: CRC Cross-Reference Analysis
- Appendix C: Technical Methods

MEMORANDUM

TO: File
FROM: John A. Kelly
DATE: February 23, 2026
RE: Practice Inventory – California County Civil Local Rules (57-County Survey)

This memorandum catalogues the procedural practices identified across a comprehensive survey of all 57 non-Sonoma California counties' civil local rules. The practices are organized by category and sorted by frequency of adoption. Each entry includes the counties that use the practice, with local rule citations where available. The survey identified approximately 78 distinct procedural practices.

1. STRUCTURAL PRACTICES

All-Purpose / Direct Calendar Assignment at Filing

Civil cases assigned to one judge for all purposes at filing, who retains authority over case management conferences, law and motion, ADR, and trial. Used in 52 counties: Alameda (Rules 3.120, 3.130), Amador (11.23), Butte (implied Rule 3.9), Colusa (3.02), Contra Costa (3.4(d)), El Dorado (2.00.10), Fresno (2.1.11), Imperial (3.1.1), Inyo (Rule 6), Kern (3.3), Kings (implied), Lake (9.1), Lassen (1.B), Los Angeles (3.3(i)), Madera (3.2.1), Marin (implied), Mariposa (3.1), Mendocino (2.1), Merced (3.5), Modoc (2.16), Mono (3.8), Monterey (1.3), Napa (6.3), Nevada (4.15), Orange (303), Placer (20.1), Plumas (2.4), Riverside (3110), Sacramento (2.30), San Benito (3.1), San Bernardino (403), San Diego (2.1.3), San Francisco (3.2), San Joaquin (3-101), San Luis Obispo (7.05.1), San Mateo (3.200), Santa Barbara (900), Santa Clara (1(B)), Santa Cruz (2.1), Shasta (3.02), Sierra (3.02), Siskiyou (2.16), Solano (3.2), Stanislaus (3.00.1), Sutter (3.0), Tehama (3.02), Trinity (3.02), Tulare (201), Tuolumne (2.02.0), Ventura (3.21), Yolo (implied), and Yuba (3-101).

Centralized Law and Motion Department

Dedicated law and motion departments separate from trial or case management departments. Used in 12 counties: Alameda (Dept. 511), Contra Costa (3.40), Fresno (2.2), Kings (Chapter 3), Los Angeles (3.5), Monterey (1.4(D)), Sacramento (2.30), San Francisco (8.0), San Bernardino (5.00), Santa Clara (8), Ventura (8.00), and Yolo (13).

Geographic / Multi-Division Filing Structure

Filing assigned by geographic division to distribute workload across courthouses. Used in 8 counties: Santa Barbara (Rules 201-204), Riverside (3115), Los Angeles (district assignment), Kern (division filing), Nevada (branch filing), Monterey (regional divisions), Orange (justice centers), and

Sacramento (multiple courthouses).

2. CASE MANAGEMENT PRACTICES

Automatic Case Management Conference Set at Filing

Clerk sets first CMC automatically upon complaint filing. Used in 55 counties: Alameda (3.170), Amador (8.05), Butte (3.9), Calaveras (3.4.3), Colusa (3.02), Contra Costa (3.8), Del Norte (3.4), El Dorado (7.12.10), Fresno (2.1.4), Glenn (3.0), Humboldt (2.8.4), Imperial (3.1.2), Inyo (6.5), Kern (3.7), Kings (implicit), Lake (8.4), Lassen (7.F), Los Angeles (3.25), Madera (3.5.1), Mariposa (3.1), Mendocino (2.1), Merced (3.5), Modoc (4.01), Mono (4.7), Monterey (6.8), Napa (6.1), Nevada (4.00.8), Orange (355), Placer (20.1.7), Plumas (3.1), Riverside (3120), Sacramento (2.50), San Benito (3.3), San Bernardino (400), San Diego (2.1.9), San Francisco (3.2), San Joaquin (3-102), San Luis Obispo (9.11), San Mateo (3.801), Santa Barbara (1309), Santa Clara (1(E)), Santa Cruz (2.1.01), Shasta (3.02), Sierra (3.1), Siskiyou (4.01), Solano (4.6), Stanislaus (3.02), Sutter (3.0(f)), Tehama (3.02), Trinity (3.02), Tulare (600), Tuolumne (2.02), Ventura (3.03.1), Yolo (13), and Yuba (3.0).

Formal Disposition Track System (12/18/24 Months)

Cases assigned to 12-, 18-, or 24-month tracks. Used in 22 counties: Alameda, Amador, Butte, Calaveras, Contra Costa, Fresno, Humboldt, Inyo, Kern, Madera, Mendocino, Merced, Nevada, San Benito, San Diego, San Luis Obispo, Santa Clara, Santa Cruz, Sutter, Tehama, Trinity, and Tulare.

Mandatory Service Within 60 Days

Complaint must be served within 60 days; failure triggers an Order to Show Cause. Used in 13 counties: Colusa (3.03), Del Norte (3.3), Inyo (6.6), Lake (8.3), Lassen (7.E), Mendocino (2.1), Merced (3.5), Shasta (3.03), Siskiyou (2.03.5), Tehama (7), Trinity (4.01), Tulare (604), and Tuolumne (2.03.5). CRC Rule 3.110 already requires this statewide; these counties have local rules restating or reinforcing the existing statewide requirement, often with automatic OSC issuance upon non-compliance.

3. LAW AND MOTION PRACTICES

Mandatory Tentative Ruling System (Auto-Adoption Unless Contested)

Tentative rulings posted the day before hearing; automatically become the order if not contested. Used in 30 counties: Alameda (3.30(d)), Amador (4.03), Butte (2.9), Calaveras (3.3.7), Contra Costa (3.43), El Dorado (7.10.05), Fresno (2.2.5), Kern (practice), Kings (5.5), Los Angeles (3.1308), Madera (3.3.6), Mendocino (2.6), Merced (3.1(F)), Monterey (7.9), Napa (2.9), Nevada (4.05.3), Orange (382), Placer (20.2.3), Plumas (2.7), Riverside (3316), Sacramento (2.40), San Benito (10.12), San Bernardino (561), San Diego (2.1.19), San Francisco (8.3), San Joaquin (3-113), San Luis Obispo (7.11.1), San Mateo (3.403), Santa Barbara (1301), Santa Clara (8(D)), Santa Cruz (2.10.01), Shasta (5.17(C)), Solano (3.9), Stanislaus (3.01), Tulare (701), Tuolumne (3.11), and Ventura (8.00). CRC Rule 3.1308 authorizes tentative ruling systems.

Online Reservation System for Law and Motion Dates

Parties must reserve a hearing date online before filing a motion. If the motion is not filed within a specified period (typically three to five court days), the reservation is automatically forfeited. Used in 9 counties: Alameda (3.30(b)), Fresno (2.2.1), Kern (3.3.1), Orange (314A), Riverside (3310), Santa Clara (8(A)(2)), Placer (20.2(A)), Ventura (3.21), and Contra Costa (3.41). Seven explicitly include forfeiture mechanisms.

Mandatory Informal Discovery Conference Before Filing Motion

Discovery motion cannot be filed until an informal discovery conference with the court has been attempted. Used in 6 counties: Fresno (2.1.17), Tuolumne (2.04.1), Ventura (8.10), San Mateo (3.700), Nevada (4.05.3), and Placer (20.2).

Fixed Weekly Law and Motion Day

Law and motion heard only on designated weekdays. Used in 13 counties: Calaveras (Fridays), Colusa (Monday/Tuesday), Del Norte (Fridays), Inyo (Tuesday/Friday), Lassen (published schedule), Modoc (15-minute rule), Plumas (2nd/4th Mondays), Shasta (Mondays), Sierra (2nd/4th Fridays), Siskiyou (department-based), Trinity (civil day), Tulare (department-based), and Tuolumne (department-based).

4. FILING AND PROCESSING PRACTICES

Mandatory Electronic Filing (All Civil)

Represented parties must e-file; PDFs must be searchable. Used in 30 counties: Alameda, Butte, Contra Costa, El Dorado, Fresno, Kern, Los Angeles, Madera, Mendocino, Merced, Monterey, Napa, Nevada, Orange, Placer, Riverside, Sacramento, San Benito, San Diego, San Francisco, San Joaquin, San Luis Obispo, Santa Barbara, Santa Clara, Santa Cruz, Solano, Stanislaus, Sutter, Tulare, and Ventura.

Searchable PDF and Bookmarking Requirement

All filings must be text-searchable PDFs with exhibits bookmarked. Used in 14 counties: Alameda (3.27), El Dorado (7.08), Imperial (2.18), Madera (6.1.4), Monterey (1.7(D)), Nevada (1.06(A)(8)), Orange (314A), Placer (10.9(F)), Riverside (3118), San Diego (2.1.4), Santa Barbara (1012), Santa Clara (6(A)), San Benito (10.13), and Tulare (117). CRC Rule 2.256(b)(3) requires text-searchability but does not address exhibit bookmarking; local bookmarking rules operate in a space the CRC has not occupied.

Midnight Filing Deadline Recognition

E-filed documents before 11:59 p.m. deemed filed the same day. Used in 8 counties: Los Angeles (3.4(g)), Orange (352), Sutter (2.2(e)), Santa Cruz (1.3.01), Tulare (117), Nevada (1.06), Riverside (3118), and Placer (10.27(G)).

Mandatory Proposed Orders Filed With Motions

Moving party must lodge a proposed order at the time of filing. Used in 6 counties: Plumas (2.2(c)), Shasta (5.17(D)), Trinity (4.14(C)), Modoc (3.02(C)), Madera (3.3.2), and Ventura (8.12).

5. DISCOVERY PRACTICES

Discovery Facilitator / Panel Program

Formal panel or facilitator assigned to resolve disputes before a motion is filed. Used in 6 counties: Sonoma (4.14), Contra Costa (3.300-3.301), Alameda (3.31), Santa Clara (8), Fresno (2.1.17 structured IDC), and San Mateo (3.700).

Concise Discovery Dispute Outline Instead of Separate Statement

Allows a short outline instead of a full separate statement. Used in 4 counties: San Diego (2.1.21), Shasta (5.04), Trinity (4.03), and Siskiyou (4.03). CRC Rule 3.1345(b)(2) expressly authorizes this practice: a separate statement is not required “when a court has allowed the moving party to submit—in place of a separate statement—a concise outline of the discovery request and each response in dispute.”

6. ADR PRACTICES

Mandatory Mediation Before Trial

ADR required prior to trial setting. Used in 18 counties: Amador (8.14), Butte (6), Fresno (2.4.2), Inyo (6.4.1), Lake (3.6), Mendocino (2.7), Monterey (6.12), Nevada (4.02), Orange (316), Riverside (3220), San Benito (3.3), San Diego (2.4.18), San Francisco (4.1), Santa Barbara (1102), Santa Clara (2(A)), Ventura (3.24), Tulare (600(a)(5)), and Tuolumne (2.05).

Court-Funded Early Settlement Session

Court pays for an initial mediation block. Used in 3 counties: Santa Clara (Rule 4(E)), Santa Barbara (CMADRESS), and Amador (8.14 first 3 hours).

7. TRIAL MANAGEMENT PRACTICES

Trial Date Set at First CMC

Trial date assigned early in the case lifecycle. Used in 8 counties: Merced (3.5), Napa (6.3), Shasta (3.02), Inyo (6.10), Plumas (4.1), Siskiyou (4.01), Tuolumne (2.02), and Ventura (3.03.1).

Trial Management Conference Deemed Commencement of Trial

Discovery and motion cutoffs tied to the trial management conference rather than the trial date. Used in 3 counties: Napa (6.2(B)), Orange (317), and Ventura (8.12).

8. EX PARTE PRACTICES

Paper Determination of Ex Parte Applications

Ex parte applications decided on papers unless the court orders an appearance. Used in 6 counties: Santa Cruz (2.9.01), Santa Clara (7(C)(6)), Trinity (4.12), Riverside (3132), Ventura (15.00), and Mendocino (1.13). CRC Rule 3.1207 requires the applicant to appear, with four enumerated exceptions; paper determination beyond those exceptions operates under the court's inherent authority (Code of Civil Procedure section 128(a)(3) and (a)(5)).

Fixed Daily Ex Parte Time

Dedicated daily ex parte slot. Used in 15 counties: Butte (2.10), Calaveras (3.1), Colusa (3.07), Del Norte (7.2), Fresno (2.7), Kern (3.4), Lake (3.5), Mendocino (1.13), Merced (3.1(I)), Monterey (7.11), Nevada (2.09), Orange (375), Riverside (3132), Santa Clara (7), and Tulare (704).

9. TECHNOLOGY AND REMOTE PRACTICES

Default Remote Appearance for Non-Evidentiary Hearings

Remote appearance is automatic unless the court orders otherwise. Used in 8 counties: Riverside (3132), Santa Clara (5), San Diego (2.5.8), San Francisco (remote default), Monterey (1.8), Santa Barbara (1005), Tuolumne (3.07), and Tulare (600(b)).

Online Motion Reservation with Forfeiture Rule

Online reservation required; motion must be filed within a specified number of days or the reservation is forfeited. Used in 7 counties with explicit forfeiture mechanisms: Santa Clara (8(A)(2)), Riverside (3310), Fresno (2.2.1), Alameda (3.30(b)), Kern (3.3.1), Placer (20.2(A)), and Orange (314A).

10. NOTABLE / INNOVATIVE PRACTICES

“No Case Off Calendar Without Future Event”

Every case must always have a next event scheduled; no case may go dormant. Used in 5 counties: Fresno (2.1.3), Ventura (3.03), Riverside (3110), Napa (6.2), and Santa Clara (1(E)).

Clerk-Calculated Attorney Fee Schedule for Defaults

Clerk applies a preset fee schedule without requiring a motion. Under Code of Civil Procedure section 585(a), the clerk may enter a default judgment and include attorney fees if the court has adopted a local schedule. Civil Code section 1717.5(b) provides that fees exceeding any court-adopted schedule must be proven as reasonable. Used in 5 counties: Sierra (2.8(c)), Shasta (5.01(C)), Plumas (2.12(c)), Trinity (4.09), and Siskiyou (5.09).

MASTER SUMMARY

TOP 20 MOST COMMON PRACTICES (BY COUNTY COUNT)

1. Automatic CMC at filing (55 counties)
2. All-purpose assignment at filing (52)
3. Mandatory e-filing (30)
4. Tentative ruling system (30)
5. Formal disposition tracks (22)
6. Mandatory mediation pre-trial (18)
7. Fixed daily ex parte time (15)
8. Searchable PDF/bookmarking (14)
9. Mandatory 60-day service rule (13)
10. Fixed weekly law and motion day (13)
11. Centralized law and motion departments (12)
12. Online motion reservation system (9)
13. Midnight filing deadline recognition (8)
14. Default remote appearance (8)
15. Trial date set at first CMC (8)
16. Mandatory proposed orders with motions (6)
17. Mandatory IDC before discovery motion (6)
18. Paper ex parte determination (6)
19. Discovery facilitator/panel program (6)
20. “No case off calendar without future event” (5)

NEAR-UNIVERSAL PRACTICES

The practices found in ten or more counties represent the strongest statewide consensus: all-purpose assignment at filing, automatic CMC at filing, mandatory e-filing, tentative ruling systems, formal 12/18/24-month disposition standards, 60-day service deadlines, and mandatory mediation or mandatory settlement conference prior to trial. These seven categories form the baseline against which any county’s civil rules can be measured.

MEMORANDUM

TO: File
FROM: John A. Kelly
DATE: February 23, 2026
RE: California Rules of Court Cross-Reference Analysis

This memorandum analyzes the practices identified in the 57-county comparative analysis against the California Rules of Court, Titles 1 through 3, to identify which practices are already required by statewide rule, which are permitted but not required, which are expressly authorized, and which represent genuinely local innovations. A CRC Rule 3.20 preemption analysis is provided for each practice that touches a preempted field.

CATEGORY 1: ALREADY REQUIRED BY STATEWIDE RULE

The following practices are already mandated by the California Rules of Court. To the extent counties have adopted local rules on these topics, they are restating or reinforcing existing statewide requirements. The relevant question for any court is whether to implement systematic monitoring and enforcement of the existing rule, not whether to adopt a new one.

60-DAY SERVICE OF COMPLAINT (CRC RULE 3.110)

Rule 3.110 provides: “The complaint must be served on all named defendants and proofs of service on those defendants must be filed with the court within 60 days after the filing of the complaint.” The rule also provides for extensions, sanctions, and OSC procedures for non-compliance. The 13 counties identified in the survey with local 60-day service rules are reinforcing existing statewide law, often by adding automatic issuance of orders to show cause when the deadline is not met.

SEARCHABLE PDF FOR E-FILED DOCUMENTS (CRC RULE 2.256(B)(3))

Rule 2.256(b)(3) provides: “The document must be text searchable when technologically feasible without impairment of the document’s image.” The Advisory Committee Comment confirms that “technologically feasible” refers to standard OCR software. This applies to all documents filed electronically under the statewide e-filing rules (CRC Rules 2.250 through 2.261). Courts with mandatory e-filing already require searchable PDFs by operation of statewide rule. Exhibit book-marking, however, is not addressed by the CRC and would require a local rule (see Category 3 below).

CASE DISPOSITION TIMELINES (CRC RULE 3.714(B))

Rule 3.714(b) establishes statewide disposition goals: 75% of unlimited civil cases within 12 months, 85% within 18 months, and 100% within 24 months. Limited civil cases have more ag-

gressive targets (90/98/100%). The 22 counties with formal disposition tracks are implementing these statewide standards through local mechanisms, but the timelines themselves are statewide requirements.

PROPOSED ORDERS AFTER RULING (CRC RULE 3.1312)

Rule 3.1312(a) provides: “The party prevailing on any motion must, within five days of the ruling, serve . . . a proposed order for approval as conforming to the court’s order.” Subdivision (e) provides that this rule does not apply if a proposed order was already submitted with the moving papers for an unopposed motion. Rule 3.1113(m) addresses format if a proposed order is voluntarily submitted: “If a proposed order or judgment is submitted, it must be lodged and served with the moving papers but must not be attached to them.” CRC Rule 3.1201(5) requires a proposed order for ex parte applications.

For regular contested motions, the CRC does not require a proposed order at the time of filing but does not prohibit it either. Six counties have adopted local rules requiring proposed orders at the time of filing. The CRC framework itself permits proposed orders to be submitted with motions; a local rule requiring submission operates in the space the CRC left open, not in conflict with it.

MEET AND CONFER FOR DISCOVERY MOTIONS (CCP SECTION 2016.040)

The statewide meet-and-confer obligation under Code of Civil Procedure section 2016.040 is the baseline. Local rules may specify timing and mode requirements (Sonoma Rule 5.4 requires in-person or telephonic meet and confer at least 5 calendar days before hearing). The informal discovery conference concept is genuinely different from meet-and-confer: it involves a conference with the court, not just between the parties.

CATEGORY 2: PERMITTED BY STATEWIDE RULE BUT NOT REQUIRED

The following practices are authorized by the CRC framework but left to local court discretion. Courts may adopt local rules within the existing statewide structure.

MANDATORY ELECTRONIC FILING (CRC RULES 2.252-2.253)

Rule 2.252(b) provides: “A court may, by local rule adopted under rule 10.613, require electronic filing of documents in specified classes of cases.” This is permissive, not mandatory. Courts may require e-filing by local rule but are not required to do so. Thirty counties have adopted mandatory e-filing. Sonoma has mandatory e-filing for represented parties in civil cases under Local Rule 17.22, effective January 1, 2023.

TENTATIVE RULING SYSTEMS (CRC RULE 3.1308)

Rule 3.1308 establishes a framework for tentative rulings but explicitly provides in subdivision (e): “This rule does not require any judge to issue tentative rulings.” Courts that choose to offer tentative rulings must adopt one of two procedures by local rule. Thirty counties have adopted tentative ruling systems. The clarity and formality of auto-adoption language varies across courts;

some use explicit language providing that the tentative “becomes the order of the court” if no party contests it, while others achieve the same result through less visible procedural mechanisms.

REMOTE/TELEPHONIC APPEARANCES (CRC RULE 3.672, CCP SECTION 367.75)

Rule 3.672 provides a framework for remote proceedings, and Code of Civil Procedure section 367.75 authorizes them. Courts have discretion to require in-person appearance. Making remote the default for non-evidentiary hearings is a local policy choice within this statewide framework. Eight counties have made remote the default for non-evidentiary hearings.

EX PARTE PROCEDURES (CRC RULES 3.1200-3.1207)

The CRC governs ex parte applications and establishes statewide requirements for notice (by 10:00 a.m. the court day before). CRC Rule 3.1207 requires the applicant to “appear, either in person or remotely,” with four enumerated exceptions (page-limit extensions, time extensions for pleadings, setting hearing dates on alternative writs and OSCs, and party stipulations). Fixed daily ex parte times are local administrative practices within this statewide framework. Paper determination of ex parte applications beyond the four enumerated exceptions operates under the court’s inherent authority to manage its proceedings under Code of Civil Procedure section 128(a)(3) (the power to “provide for the orderly conduct of proceedings”) and section 128(a)(5) (the power to “control in furtherance of justice the conduct of its ministerial officers”). If a court wishes to formalize paper determination, the appropriate vehicle is a standing order rather than a local rule modifying CRC 3.1207, which would create a Rule 3.20 preemption issue.

CATEGORY 3: GENUINELY LOCAL INNOVATIONS

The following practices are not addressed by the CRC and represent local rules or administrative practices without statewide counterpart.

ONLINE LAW AND MOTION RESERVATION SYSTEM WITH FORFEITURE

No CRC provision addresses this practice. It is a calendar management tool, not a rule relating to the substance of motions, discovery, or the form and format of papers. Nine counties have adopted this practice. CRC Rule 3.20 does not preempt it because it does not fall within any of the pre-empted fields enumerated in Rule 3.20(a).

EXHIBIT BOOKMARKING REQUIREMENT

CRC Rule 2.256 requires searchable PDFs but does not require bookmarking. A local rule requiring bookmarked exhibits in e-filed documents operates in a space the CRC has not occupied. Fourteen counties have adopted this practice. The form and format of papers is a preempted field under Rule 3.20(a), but CRC 2.256(b) establishes only a text-searchability standard and does not address exhibit bookmarking at all, meaning that a local bookmarking rule does not conflict with the statewide rule. Drafting should frame the requirement as a local court technology standard.

CONCISE DISCOVERY DISPUTE OUTLINE (CRC RULE 3.1345(B)(2))

CRC Rule 3.1345(b)(2) expressly authorizes this practice: a separate statement is not required “when a court has allowed the moving party to submit—in place of a separate statement—a concise outline of the discovery request and each response in dispute.” A local rule allowing concise outlines operates directly under this provision. There is no preemption concern. San Diego (Rule 2.1.21) has implemented this most prominently, along with Shasta, Trinity, and Siskiyou.

MANDATORY INFORMAL DISCOVERY CONFERENCES

The CRC does not address informal discovery conferences. Discovery is a preempted field under Rule 3.20(a). However, an IDC requirement is best characterized as a case management tool rather than a discovery rule; it does not alter the substance of discovery practice, the grounds for motions, or the format of papers. It is a calendaring prerequisite. If adopted under the Delay Reduction Act framework (Government Code sections 68603 et seq.), it falls within the Rule 3.20(b)(4) exception. Six counties currently operate IDC programs without successful preemption challenge.

TRIAL MANAGEMENT CONFERENCE DEEMED COMMENCEMENT OF TRIAL

The practice of deeming the TMC as the commencement of trial, which ties statutory discovery and motion cutoffs to the TMC date rather than the trial date, is a local innovation used in Napa (6.2(B)), Orange (317), and Ventura (8.12). There is no CRC counterpart.

“NO CASE OFF CALENDAR WITHOUT FUTURE EVENT”

This practice prevents any case from going dormant by requiring that every case have a future court event at all times. Used in 5 counties: Fresno, Ventura, Riverside, Napa, and Santa Clara. There is no CRC counterpart.

CLERK-CALCULATED DEFAULT FEE SCHEDULE

No CRC provision addresses this practice. Under Code of Civil Procedure section 585(a), the clerk may enter a default judgment and include attorney fees if the court has adopted a local schedule. Civil Code section 1717.5(b) provides that fees exceeding any court-adopted schedule must be proven as reasonable. Used in 5 counties: Sierra, Shasta, Plumas, Trinity, and Siskiyou.

CRC RULE 3.20 PREEMPTION FRAMEWORK

CRC Rule 3.20(a) preempts local rules in several fields, including motions, discovery, and the form and format of papers. However, multiple pathways exist for local rule adoption:

Calendar management tools (such as online reservation systems) do not relate to the substance of motions, discovery, or paper format and fall outside the preempted fields entirely. CRC-authorized practices (such as concise discovery outlines under CRC Rule 3.1345(b)(2)) operate directly under express statewide authorization. Topics not addressed by the CRC (such as exhibit bookmarking) operate in spaces the CRC has not occupied and do not conflict with

statewide rules. The Delay Reduction Act (Government Code sections 68603 et seq.) provides an exception under Rule 3.20(b)(4) for local rules adopted within that framework.

Courts adopting practices in preempted fields have generally framed them under the Delay Reduction Act or as calendar management tools rather than as modifications to statewide procedural rules.

SUMMARY TABLE

Practice	CRC Status	Notes
60-day service with OSC	Already required (Rule 3.110)	Enforcement question
Searchable PDFs	Already required (Rule 2.256)	Requires mandatory e-filing
Disposition timelines	Already required (Rule 3.714)	Local enforcement mechanisms
Proposed orders after ruling	Already required (Rule 3.1312)	At-filing requirement is local
Mandatory e-filing	Permitted (Rule 2.252)	30 counties adopted
Tentative rulings	Permitted (Rule 3.1308)	30 counties adopted
Remote as default	Permitted (Rule 3.672)	8 counties adopted
Discovery dispute outline	Expressly authorized (Rule 3.1345(b)(2))	No preemption concern
IDC before discovery motions	Not addressed; defensible under DRA	6 counties adopted
Online L&M reservation	Not addressed; no CRC conflict	9 counties adopted
Exhibit bookmarking	Not addressed; CRC silent	14 counties adopted
Proposed orders at filing	Permitted by CRC framework	6 counties adopted
Ex parte paper determination	Inherent authority (CCP 128)	Standing order, not local rule
TMC as trial commencement	Not addressed	3 counties adopted
No case off calendar	Not addressed	5 counties adopted
Clerk default fee schedule	Not addressed	5 counties adopted

MEMORANDUM

TO: File
FROM: John A. Kelly
DATE: February 23, 2026
RE: Technical Methods and Products – California Civil Local Rules Comparative Analysis

OVERVIEW

This memorandum documents the technical methods, tools, and products used to produce the 57-county comparative analysis of California civil local rules. The analysis was conducted to identify procedural practices used across California’s trial courts, with particular attention to practices that affect filing processing times and law and motion hearing scheduling. The project proceeded in six phases: source material acquisition, pairwise comparative analysis, two-stage synthesis, attorney review and correction, memorandum compilation, and infographic generation.

PHASE 1: SOURCE MATERIAL ACQUISITION

Local rules of court for all 58 California counties were downloaded in PDF format from each county’s Superior Court website during January and February 2026. The 96 PDF files (some counties publish rules in multiple volumes organized by subject-matter division) total approximately 148 MB. The source PDFs are preserved in the Local Rules Appendix (Project Folder 21), organized into county subfolders with a compiled index.

Each PDF was converted to plain text using standard text extraction tools. For counties with integrated rules covering civil, criminal, family, and probate matters, the civil portions were extracted into separate text files. The resulting 58 text files (one per county, plus Sonoma County as baseline) total approximately 9.6 MB and are stored in Project Folder 16.

Counties whose PDF source material required civil-only extraction were documented in a reference table (Appendix B in Project Folder 16) identifying each county as having either “Full” integrated rules or “Extracted” civil-only rules. This classification was used by the comparison scripts to adjust the analytical prompt accordingly.

PHASE 2: PAIRWISE COMPARATIVE ANALYSIS

MODEL SELECTION

The comparative analysis used OpenAI’s GPT-5.2-chat-latest model, accessed through the OpenAI API. This model was selected for its large context window (sufficient to hold two complete sets of county rules simultaneously), strong legal reasoning capabilities, and structured output quality.

The model was run at default temperature (1.0), as GPT-5.2-chat-latest does not support custom temperature settings.

COMPARISON SCRIPT

A bash script (01 run_comparisons.sh, Project Folder 18) automated the 57 pairwise comparisons. Each comparison submitted Sonoma County's civil local rules together with one other county's rules to the GPT-5.2-chat-latest model via the OpenAI API, along with a detailed analytical prompt.

The script was designed for reliability on a remote server environment. API calls were constructed using an embedded Python 3 block (via heredoc) to handle large file reading, JSON payload construction, and HTTP requests through Python's standard urllib.request library, avoiding any dependency on third-party Python packages. Each API call included retry logic (up to 3 attempts with 30-second backoff) and a 600-second curl timeout to accommodate large payloads. The model was allowed up to 32,000 completion tokens per response. The script tracked progress in a log file and skipped counties whose output files already existed, allowing interrupted runs to resume.

ANALYTICAL PROMPT

The prompt directed the model to analyze each county's civil rules across 10 categories: (1) Structural Comparison, (2) Case Management, (3) Law and Motion Procedures, (4) Filing and Processing, (5) Discovery Procedures, (6) Alternative Dispute Resolution, (7) Trial Setting and Management, (8) Ex Parte Procedures, (9) Technology and Remote Proceedings, and (10) Notable or Innovative Practices. Categories 3 and 4 (Law and Motion and Filing and Processing) were designated as priority areas.

For each category, the model was instructed to first describe the comparison county's procedures in detail with specific rule citations, then compare those procedures against Sonoma County's approach. The prompt emphasized that the analysis should focus on the comparison county's practices, not Sonoma's, to ensure the output provided actionable information about what other counties do differently. For counties with integrated (non-civil-only) rule sets, the prompt included a notice directing the model to focus only on civil-relevant portions.

Each comparison produced a structured Markdown report including an executive summary, detailed category-by-category analysis, specific observations about the comparison county, practices to note, and notable rule language.

EXECUTION ENVIRONMENT

The comparison script was executed on a Mac mini server via SSH, using nohup to ensure the long-running process (approximately 43 minutes for all 57 comparisons) continued regardless of network interruptions. All 57 comparisons completed successfully. Output files were automatically synchronized to the working machine via Dropbox.

PHASE 3: TWO-STAGE SYNTHESIS

With 57 detailed comparison reports totaling approximately 175,000 tokens, a two-stage synthesis strategy was adopted to balance cost and analytical quality.

STAGE 1: PATTERN EXTRACTION

A bash script (02 stage1_extract_practices.sh, Project Folder 19) concatenated all 57 comparison reports and submitted them to GPT-5.2-chat-latest in a single API call. The model was directed to extract a structured inventory of every distinct practice or procedure mentioned across the reports, recording for each practice the number of counties employing it, which counties those were, and a description. This stage reduced 175,000 tokens of narrative text into an approximately 5,000-token structured Practice Inventory identifying 78 distinct practices across 10 categories.

STAGE 2: FINAL SYNTHESIS

A second bash script (04 stage2_final_synthesis.sh, Project Folder 19) submitted the Practice Inventory to GPT-5.2-chat-latest with instructions to produce a comprehensive analysis document. The model was directed to prioritize practices addressing filing processing delays and law and motion scheduling backlogs, to provide implementation considerations for each practice, and to organize the analysis by category. Both synthesis scripts were executed on the Mac mini server using the same SSH and nohup approach as the comparison script. The total synthesis cost was approximately \$0.40.

PHASE 4: ATTORNEY REVIEW AND CORRECTION

The initial synthesis output underwent attorney review, which identified several corrections and analytical gaps that were resolved in subsequent work.

CHARACTERIZATION CORRECTIONS

The attorney review identified that the initial synthesis mischaracterized several Sonoma County practices. Sonoma's tentative ruling system (Rule 5.5) was not initially recognized as existing, when in fact Sonoma has had tentative rulings and the system operates as auto-adoption in practice. The 20-minute oral argument limit (Rule 5.5(B)) was similarly unrecognized. Mandatory e-filing was confirmed to operate under Local Rule 17.22, effective January 1, 2023 (not under a general order as initially assumed). These corrections were incorporated into all subsequent documents.

CRC CROSS-REFERENCE ANALYSIS

The attorney review produced a complete cross-reference of identified practices against the California Rules of Court, Titles 1 through 3, categorizing each practice as (1) already required by statewide rule, (2) permitted but not required, or (3) a genuinely local innovation. This analysis revealed that several practices initially characterized as local innovations (60-day service, searchable PDFs, disposition timelines) are in fact existing statewide requirements under CRC Rules 3.110, 2.256(b)(3), and 3.714(b), respectively.

CRC RULE 3.20 PREEMPTION ANALYSIS

A comprehensive preemption analysis was performed for each practice that touches a field preempted by CRC Rule 3.20(a). Key findings included: CRC Rule 3.1345(b)(2) expressly authorizes concise discovery outlines, eliminating preemption concerns for that practice; informal discovery conference programs are defensible under the Delay Reduction Act exception (Rule 3.20(b)(4)); exhibit bookmarking rules operate in a space the CRC has not occupied; and ex parte paper determination beyond the CRC 3.1207 exceptions operates under inherent authority (Code of Civil Procedure section 128(a)(3) and (a)(5)), best formalized through a standing order rather than a local rule.

TERMINOLOGY CORRECTIONS

The attorney review established precise terminology for adoption rates: “widespread” for practices used in 30 or more counties, “moderately adopted” for 14 to 22 counties, “innovative” for 6 to 9 counties, and “novel” for 5 or fewer counties. The initial synthesis had used “widely adopted” for practices used in as few as 6 counties, which overstated their prevalence.

PHASE 5: MEMORANDUM COMPILATION

All 57 county comparison reports were converted to formal memoranda using the memorandum compiler (08 compile_memorandum.py, Project Folder P.0100/09). The compiler uses Pandoc and XeLaTeX to produce professionally formatted PDFs with standard memorandum headers (TO, FROM, DATE, RE), Californian FB font throughout, and consistent styling (H1 uppercase centered, H2 uppercase, H3 underlined). Each report received YAML frontmatter and was compiled to PDF. The 57 memoranda are stored in Project Folder 20.

The synthesis outputs (Practice Inventory and initial analysis) were similarly compiled to formal memoranda (Project Folder 19, Documents 06 and 07).

PHASE 6: INFOGRAPHIC GENERATION

Six landscape infographics were generated for the final report using Google’s Gemini gemini-3-pro-image-preview model via the Gemini API. Each infographic used the Redwood Card visual style: a misty redwood forest background with a floating white card overlay containing structured data displays. The infographics were generated via a shell script (03 generate_infographics.sh) executed on the Mac mini server via SSH.

The six infographics cover: (1) Sonoma’s position showing strengths and gaps, (2) law and motion scheduling practices with county counts, (3) filing processing practices with county counts, (4) additional practices across six categories, (5) CRC Rule 3.20 preemption landscape showing four categories of adoptability, and (6) statewide adoption tiers showing prevalence from 30+ counties down to 3.

QUALITY ASSURANCE

SOURCE MATERIAL VERIFICATION

During the compilation process, two counties were identified as having deficient source material. Glenn County’s extracted civil rules file contained only a table of contents (242 bytes) rather than the substantive rule text; the civil rules (Chapter 3, Rules 3.0 through 3.3) were re-extracted from the full county rules file and the comparison was re-run successfully. Marin County’s extracted civil rules file similarly contained only a table of contents stub (446 bytes); the civil rules (Chapter 2) were re-extracted and the comparison was re-run successfully.

CROSS-VERIFICATION

All 57 reports were scanned for indications that the model received insufficient source material (phrases such as “not included,” “not provided,” or “table of contents only”). Seven additional counties were flagged for review; in each case, the flagged language reflected accurate observations about the comparison county’s rule structure (e.g., a county genuinely lacking a particular procedure) rather than a data quality problem.

ATTORNEY REVIEW CYCLE

The attorney review and correction phase (Phase 4) served as the primary quality assurance mechanism for substantive accuracy. Every rule citation in the final report was re-verified against the California Rules of Court and Sonoma County Local Rules. The CRC Rule 3.20 preemption analysis was independently researched for each practice touching a preempted field.

PRODUCTS DELIVERED

Product	Location	Count	Format
County comparison memoranda	Project Folder 20	57	PDF
Source local rules (PDF)	Project Folder 21	96 files, 58 counties	PDF
Appendix index	Project Folder 21	1	PDF
Practice Inventory memo	Project Folder 19	1	PDF
Initial analysis memo	Project Folder 19	1	PDF
Attorney review and corrections	Project Folder 25	1	Markdown
CRC cross-reference analysis	Project Folder 26	1	Markdown
Final report with infographics	Project Folder 27	1	PDF (26 pages)
Report for Regan Masi	Project Folder 28	1	PDF
Comparison scripts	Project Folder 18	1	Bash

Product	Location	Count	Format
Synthesis scripts	Project Folder 19	2	Bash
Infographic generation script	Project Folder 27, 28	2	Bash

SOFTWARE AND SERVICES

Tool	Purpose
OpenAI GPT-5.2-chat-latest	Comparative analysis and synthesis (API access via curl/urllib)
Google Gemini gemini-3-pro-image-preview	Infographic generation (API access via curl)
Python 3	JSON construction, file processing (standard library only)
Bash	Script automation (macOS default)
Pandoc	Markdown to PDF conversion (Homebrew)
XeLaTeX	PDF typesetting (MacTeX distribution)
Dropbox	File synchronization between local machine and server